

CIS COMA/05/2019 CNR No. HRGR01-007022-2019

Serious Fraud Investigation Vs. Adarsh Build Estate

Present: Sh.Pawan Raghav Learned counsel for applicant.
Sh. Hari Kishan public prosecutor on behalf of SFIO
with Sh. L.S Raghav standing counsel for complainant
SFIO.

Order:

This order shall dispose off the application filed by accused Shashank Shekhar Singh Rathor in compliance of order of Hon'ble High Court dated 5.11.2019 passed in CRM-M 37276 of 2019, vide which, he was allowed to become approver and make the statement before this court.

Learned prosecutor appearing on behalf of SFIO, has contended that applicant-accused was summoned in a complaint case titled as Serious Fraud Investigation Office Vs.Adarsh BuildEstate Limited vide order dated 11.7.2019. In order to obtain the concession of bail, he reached Hon'ble High Court and showed his willingness to become approver. If he discloses the true facts before this court, then prosecutor has no objection in getting his statement recorded in view of provision contained under Section 306 of Criminal Procedure Code.

Learned counsel for applicant-accused has contended that applicant-accused is ready to disclose the true facts before this court regarding the commission of crime.

I have heard learned counsel for applicant and learned prosecutor appearing on behalf of SFIO and examined the provisions contained under Section 306 of Cr.P.C and order of Hon'ble High Court.

Perusal of record reveals that a applicant-accused has been summoned vide order dated 11.7.2019. He was allowed to become approver by Hon'ble High Court. This court before recording his statement, inquired him about his willingness to make statement. He has stated that he is ready to disclose the entire facts of the case within his knowledge. He has assured that his statement will contain the full and true disclosure of the whole of circumstance within his knowledge relating to offence and to every person whether a principal or abettor in the commission of offence.

The court at this juncture has accepted his request and accordingly, his application is allowed. It is made clear to him that in case , he will deviate from his statement made before this court, in that eventuality, he will be dealt with under Section 308 Cr.P.C. It is also made clear to him that if at any stage, it is realized that he is not

-3-

cooperating with the prosecution, in that eventuality, the court may proceed against him and will take him into custody, if need be.

The applicant-accused is present and his statement has been recorded as per law. The Ahlmad is directed to keep the statement of approver witnesses in an envelope duly pasted and sealed. Now to come up on 30.5.2023 the date already fixed.

(Dr. Virender Parshad)

Additional Sessions Judge-cum-
Special Judge,

Gurugram UID HR 0082

Date of Order:22.5.2023
mamta